

The instant motion is untimely as to Defendant Stop & Save Gasoline and therefore is **denied** as to it. The motion is **granted** as to Defendants Ahmed and Azzya. The defaults entered on November 25 and December 29, 2026, are set aside. Those individual Defendants shall file their responsive pleading within 10 days of notice of entry of the order on this motion.

9. 9:00 AM CASE NUMBER: C25-02254

CASE NAME: REID GREENLAW VS. TERESA TRUONG

*HEARING ON MOTION IN RE: TRIAL PREFERENCE

FILED BY: GREENLAW, REID

TENTATIVE RULING:

Before the Court is Plaintiff's motion for trial preference, originally set for hearing on September 11, 2026 at 9:00 a.m. (one week before the hearing on Defendant's motion to compel arbitration.) Plaintiff moved *ex parte* for an order shortening time and the hearing was advanced to May 26, 2026. The Court understands there may have been some confusion regarding an initial rejection of the Plaintiff's *ex parte* application, which led to that application ultimately being unopposed. The Court also notes that Defendants have moved *ex parte* to advance the hearing on their pending motion to compel arbitration, currently set for September 28, 2026.

Plaintiff, relying on *Vinokur v. Superior Court* (1998) 198 Cal.App.3d 500 (*Vinokur*), contends the right to trial preference supersedes the right to arbitrate. (Motion at 7:11-14; Reply at 3:1-6.) *Vinokur* states, "The instant case thus presents a conflict between a statute enacted in order to ensure that senior litigants do not lose the right to have their cases litigated because of delays in setting trial dates [citation], and another statute intended principally as a device for easing a growing burden on our courts and to be encouraged or required 'whenever possible.' Under these circumstances section 36, which is 'mandatory and absolute in its application,' is unquestionably the controlling authority, and the competing interest of the arbitration statute must yield in order to ensure older litigants have their day in court. Notwithstanding the simplified and often efficient procedures of the arbitration mechanism, a party who is dissatisfied with an arbitration award retains the right to have a de novo trial (§ 1141.20), in which case the trial date will be set far beyond 120 days from the date the case was ordered into arbitration. Moreover, we find no convincing reason to accord trial preference to parties over age 70 when the amount in controversy exceeds \$50,000, while denying the right simply because less money is

at stake.” (*Id.*, at p. 503; Footnote 7 omitted.)

However, *Vinokur* is distinguishable because that case involved judicial arbitration pursuant to Civil Code section 1141.11. This case involves contractual arbitration. (See generally, Defendants’ Motion to Compel Arbitration and Stay Action.) Additionally, *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399 holds that the right to trial preference does not supersede the right to arbitrate. (*Id.* at 1409-1410 [“Laswell’s advanced age and the trial court’s decision to grant her trial preference have no relevance to whether Code of Civil Procedure section 1281.2, subdivision (c) applies and, given it does not, whether to grant the petition to compel arbitration.”].)

In light of the forgoing, the Court **continues** the hearing on the motion for trial preference to August 7, 2026 at 9:00 a.m. The Court also **advances** the hearing on the motion to compel arbitration to the same date.

Defendants are ordered to serve Plaintiff with notice of entry of this order.

10. 9:00 AM CASE NUMBER: C25-02836

CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

TENTATIVE RULING:

Defendants Bay Area Legal Aid (“Legal Aid”) and Shaunita Hampton (“Hampton”, together with Legal Aid, “Defendants”) bring this demurrer to the first amended complaint (“Complaint”) of plaintiff Mofoluso Olalemi (“Plaintiff”). Defendants challenge Plaintiff’s: (1) first cause of action for professional negligence/legal malpractice; (2) second cause of action for breach of fiduciary duty; (3) third cause of action for breach of contract; (4) fourth cause of action for negligent misrepresentation; (5) fifth cause of action for violation of the violence against women act; (6) sixth cause of action for discrimination in violation of Title VI; and (7) seventh cause of action for discrimination in violation of the Fair Employment and Housing Act.

Plaintiff has not filed a formal opposition to the instant demurrer but addresses some arguments in her Complaint.

For the reasons discussed below, Defendants’ demurrer is **SUSTAINED** without leave to amend as to the cause of action asserting a Violence Against Women Act claim.